



MAJORS AT A GLANCE

2023

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PART A

STRIKES AND LOCKOUTS

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There shall be no strike, work stoppage, slowdown or lockout during the term of this Agreement.

The employees shall have the right to refuse to cross any authorized picket line established by another trade union.

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START PAPERWORK

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When an employee is asked to sign any start paperwork, the employee's signature will not be interpreted as acceptance of any terms and conditions that conflict with this this Collective Bargaining Agreement, including all applicable side letters thereto, except any better terms agreed to between the employee and the employer. The employee's signature serves as an acknowledgment of the receipt of the employer's policies. The parties expressly reserve their respective positions with respect to any additional terms in the start paperwork that relate to matters not addressed in this Collective Bargaining Agreement.

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COURTESY HOUSING OR TRANSPORTATION

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Upon request of an employee who is required to work in excess of fourteen (14) hours within a radius of thirty (30) miles of Columbus Circle in the New York Metropolitan area and who advises the employer that he/she is too tired to drive home safely, employer shall provide the employee either courtesy housing or round-trip transportation from the designated crew parking area to home and return at the employer's expense. The employer shall have no responsibility for the personal vehicle in lieu of employer-provided transportation.

*Round trip transportation may include public transportation if reasonable under the circumstances.

NOTE - Make your needs known. Also, it's up to production to choose between hotels or rides.

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REST PERIOD

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Daily Rest Period

There shall be at least a ten (10) hour daily rest period between the termination of work on one work call and the commencement of the next work call.

The penalty for invasion of the rest period (i.e., for allowing less than the ten (10) hour rest period between the termination of work on one call and the commencement of work on the next call) shall be a payment for invaded hours only at an additional straight time.

The following shall apply to employees working on theatrical motion pictures shooting within a fifty (50) mile radius of Columbus Circle: Any employee who is required to work more than fourteen (14) consecutive hours, including meal periods (i.e., fourteen (14) elapsed hours) from the time of reporting and who does not receive a ten (10) hour rest period thereafter shall be paid, when he resumes work, two and one-half times (2 ½) the employee's regular basic hourly rate for all hours worked in excess of fourteen (14) until the employee receives a ten (10) hour rest period.

The following shall apply to employees working on theatrical motion pictures shooting outside a fifty (50) mile radius from Columbus Circle or on any television motion picture: Any employee who is required to work more than fourteen (14) consecutive hours, including meal periods (i.e., fourteen (14) elapsed hours) from the time of reporting and who does not receive a ten (10) hour rest period thereafter shall continue to be paid, when they resume work, at the rate in effect for such employee at the end of the first call for all such hours worked in excess of fourteen (14) until the employee receives a ten (10) hour rest period.

When an employee is required by the employer to remain away from home overnight on distant location, the daily rest period shall be nine (9) hours, measured "portal-to-portal"

Weekend Rest Period

For a five (5) day workweek, weekend rest shall be fifty-four (54) hours. For a six (6) day workweek, or when the sixth day worked is on the seventh day of the workweek, weekend rest shall be thirty-two (32) hours.

The weekend turnaround for Distant Hires (i.e., those required by the employer to remain away from home overnight) is measured set to set.

The penalty for invasion of the weekend rest period will be additional straight time for all invaded hours.

There are three scenarios where the rest on a five-day workweek can be reduced to fifty (50) hours as long as the fifth day of the workweek is 12 hours worked or less, and either.

1. Exterior night shooting as called for in the script, and is scheduled for the fifth day of the workweek;
2. Work on the fifth day of the workweek takes place at a shooting location, access to which is limited to certain hours; or
3. Work on the fifth day of the workweek is delayed due to health and safety concerns as a result of weather or a natural hazard that occurs during the work shift.

Fifty (50) hour weekend turnaround may only be used:

1. No more than one time every six weeks on episodic series and mini- series.
2. Once on a one-time motion picture 66-85 min. in length.
3. Twice on a theatrical motion picture or a one-time motion picture 85 minutes or more in length.
4. The 32 hour six-day workweek rest provision cannot be reduced without penalty.

Weekend rest periods do not apply to a workweek shift.

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WHEN THE REST PERIOD STARTS AND ENDS

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For Employees Reporting to a location in the Thirty (30) Mile Columbus Circle Zone, within the area bounded by 125th Street and the Battery

In the New York metropolitan area, when an employee is required to report to a location within the 30-mile Columbus Circle zone, and within the area bounded by 125th Street and the Battery, the rest period shall commence at the time of dismissal at the location and, if called to work by the same employer at a similar zone location the following day, end at the call time for the next day.

For Employees Reporting to a Location Within the Thirty (30) Mile Zone, But Outside the Area Bounded by 125th Street and the Battery

In the New York metropolitan area, if an employee is required to report to a location within the 30-mile zone, but outside the area between 125th Street and the Battery, the daily rest period shall be deemed to commence at the time that results when the amount of time required for the employee to travel from such location back to either a mutually-agreed upon point in the area bounded by 125th Street and the Battery or to the perimeter of the area bounded by 125th Street and the Battery is added to the employee's dismissal time.

For example, suppose an employee is required to report to Newark for work on a pilot which commences principal photography on September 1. The employee is dismissed from work at 9:00 p.m. Suppose the agreed-upon travel time from Newark to reach the perimeter of the area between 125th Street and the Battery is one-half hour. The employee's daily rest period begins

at 9:30 p.m. When the employee is required to report to Newark to work for same employer the following day, the employee's call time may not be earlier than 8:00 a.m. to avoid an invasion of the ten (10) hour daily rest period.

For Employees Reporting to a Studio

A studio shall be defined as any facility with a production office and one or more sound stage(s) that is used for motion picture production or other than a temporary basis and that is located within the 30-mile Columbus Circle zone). In the New York metropolitan area, when an employee is required to report to a studio located within the 30-mile Columbus Circle zone, the rest period shall commence at the time of dismissal at the studio and, if called to work at the studio by the same employer the following day, end at the call time for the next day.

This applies to all Stages within the zone.

For Employees Reporting to Work on Nearby Locations

In the New York metropolitan area, if an employee is required to report to a location outside the 30-mile Columbus Circle zone, then the daily rest period shall be deemed to commence at the time that results when the amount of time required for the employee to travel from the location to either a mutually-agreed upon point in the area bounded by 125th Street and the Battery or to the perimeter of the area bounded by 125th Street and the Battery is added to the employee's dismissal time and ends when the amount of time required for the employee to travel from a mutually-agreed upon point in the area bounded by 125th Street and the Battery or from the perimeter of the area bounded by 125th Street and the Battery to the location is subtracted from the employee's call time, if called to work by the same employer at a nearby location on the following day.

NOTE - You are on the clock until you reach the mutually agreed upon point.

A designated representative of the employer and a designated representative of the Union, the on-set steward, shall determine the amount of time needed to travel between the location and either the mutually agreed upon point within the area bounded by 125th Street and the Battery or the perimeter of the area bounded by 125th Street and the Battery. In the event of a dispute, the matter shall be referred to the employees' bargaining representative and to the Labor Relations representative of the employer for resolution.

NOTE - If you cannot agree on an amount of time to travel, please call the hall.

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USE OF PERSONAL VEHICLE

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When an employee uses his or her own personal vehicle at the employer's request to conduct business for the employer during the workday within a radius of thirty (30) miles of Columbus Circle or within a radius of thirty (30) miles of City Hall in Buffalo, NY (and not for commuting purposes), the employer

shall reimburse the employee for parking and toll road fees that are necessarily incurred and pre-approved by the employer and for mileage at then-current IRS rate or shall make other arrangements with the employee for payments as allowed under applicable law (e.g., car allowance). It is understood that if transportation is offered by the employer, no reimbursement of any kind is required for the employee's use of his or her personal vehicle.

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REPORT TO LOCATIONS

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The Thirty (30) Mile Zone

Any location within a radius of thirty (30) miles of Columbus Circle (the "thirty (30) mile report-to zone"), other than Sandy Hook, New Jersey, shall be a report-to location without any travel payment requirement. When an employee reports for work within thirty (30) mile report-to zone (whether at a studio or a location), the employee's call time shall commence at the studio or location and shall end when dismissed at such studio or location.

Thirty (30) Mile Production Zone In Buffalo, New York

Any studio or location that is within the radius of thirty (30) miles of City Hall in Buffalo, New York. When an employee reports for work within thirty (30) mile report-to zone (whether at a studio or a location), the employee's call time shall commence at the studio or location and shall end when dismissed at such studio or location.

Nearby Locations

Any employee who is required to report to a nearby location (i.e., a location which is outside the 30-mile report-to zone other than a distant (overnight) location) shall be paid mileage based on thirty cents (\$.30) per mile computed from the perimeter of the area bounded by 125th Street and the Battery to the location and return from the location to the perimeter of that area. In that case, the employee's work time shall commence at the time which results when the amount of time needed to travel to the location either from a mutually-agreed upon point in the area bounded by 125th and the Battery or from the perimeter of the area bounded by 125th Street and the Battery is added to the call time and shall end at the time which results when the amount of time needed to travel from the location to either such mutually-agreed upon point or to the perimeter of the area bounded by 125th Street and the Battery is added to the dismissal time.

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MEALS ON LOCATION

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Employees on location out of town shall be allowed the sum of \$6.50 for breakfast, \$8.50 for lunch, and \$14.00 for dinner, plus first-class hotel accommodations, if available.

Meal allowances shall not be required if a meal appropriate to the time of day is provided by the employer.

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TRANSPORTATION, TRAVEL TIME AND IDLE DAYS

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First class transportation shall be furnished by the employer to and from location with lower berth accommodations whenever possible and all regular meals while traveling.

For any day of the week (including holidays) on which an employee travels only, the employee shall receive an allowance of four (4) hours of pay at straight time or pay for time actually traveled, whichever is greater, but in no event more than eight (8) hours of pay at straight time.

When an employee has worked during the day and is required to travel in excess of the regular eight (8) hour work schedule, he shall be paid for the hours spent in travel at the rate of time and one-half (1 ½), except that such travel time paid shall not exceed four (4) hours at time and one-half (1 ½) during each twenty-four (24) hour period running from 8:30 a.m. to 8:30 a.m.

Weekend Idle Time Pay

Employees who work on production locations and who are required by the Employer to be lodged overnight away from home shall receive four (4) hours' pay at scale plus eight (8) hours of pension and health contributions for unworked sixth and/or seventh days. The parties confirm that the four (4) hours of pay shall not be considered work time.

NOTE - If you travel out of the Local 52 jurisdiction you must notify the hall. You need the permission of the local whose jurisdiction you are traveling to. Please provide dates and crew that are traveling. You are constitutionally required to sign a dues checkoff to the local which will be hosting you, but you do not pay twice. So no dues to Local 52. If you are unclear, please call the Local 52 Treasurer for more information.

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CANCELLATION OF CALLS

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When an "off production" employee is hired at the daily rate, he shall be notified prior to 3:00 p.m. by the Employer if his work is to terminate at the end of that particular day. When an "on production" employee is hired at the daily rate, he shall be notified prior to 5:00 p.m. by the Employer if his work is to terminate at the end of that particular day. (It shall be the responsibility of the heads of department of Local #52 to ask for this information and, in the event of failure to do so, the following sentence will not apply.) In the event that such notice is not given, it shall be construed that the employee is to report for work the following day.

When the services of a daily employee are terminated, he shall be paid all monies due him under the Majors Collective Bargaining Agreement, in cash or by check, within seven (7) calendar days after termination.

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WEATHER PERMITTING CALL

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The employer may cancel calls due to inclement weather for those employees working within a fifty (50) mile radius of Columbus Circle, provided that the employer provides notice to the Union as soon as practicable. The employee must be notified of the cancellation no later than 8:00 p.m. the night before the call.

"The employer may issue a "weather-permitting" call for extreme heat, extreme cold, extreme wind, snow, sleet, ice storms, fire hazard as identified by the National Weather Service, smoke conditions or hurricanes, which may be cancelled up to four (4) hours prior to the call time. In the event the employee is notified not to report to work, he or she shall be paid four (4) hours of pay at straight time, which shall be subject to pension, health and IAP contributions; however, if the notification is untimely, the employee shall be paid for an eight (8) hour minimum call."

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WORKING IN HIGHER CLASSIFICATION

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If two (2) or more hours of the workday are worked pursuant to a designated supervisor's authorization in a higher classification than the classification under which the employee is called for work, the higher rate shall prevail for the entire workday. The employee reverts to his regular classification the next day unless notified to the contrary.

Each production unit shall be manned by heads of departments.

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HOLIDAYS

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2022 Majors Collective Bargaining Agreement MOA Page 24

The following holidays shall be recognized for employees employed under the provisions of Part A of this Agreement;

New Year's Day

Martin Luther King Jr Day

President's Day
Memorial Day
Fourth of July
Labor Day
Veteran's Day
Thanksgiving Day and the day after Thanksgiving Day
Christmas Day

Any holiday designated by federal statute shall be considered to fall on the day so designated, etc. All work performed on a holiday shall be paid in accordance with the provisions for work on an employee's seventh day.

Except as otherwise provided in this Agreement, each employee employed under Part A of this Agreement shall be entitled to an unworked holiday pay benefit as payment for holidays not worked, which shall be computed based on 4% of the employee's annual straight time work earnings. Any amounts paid by the employer for such unworked holidays shall be offset against the 4% payment due, it being understood that the right of offset against unworked holiday pay provided hereunder shall be neither greater than nor less than the right of offset provided to the employer under the Producer IATSE West Coast Studio Local Agreements.

Payment for unworked holidays shall be made in a lump sum in a separate check issued either at the end of the television season or upon completion of a theatrical production.

Notwithstanding the foregoing paragraph: **There shall be no unworked holiday pay for long-form television productions or pilots.**

For any one-hour episodic series other than a "new" one-hour episodic series (i.e., one that started before May 16, 2006), unworked holiday pay shall be paid at 4% of the employee's annual straight time work earnings. Unworked holiday pay for new one-hour series shall be governed by the provisions of the attached Sideletter re "Special Conditions for New One-Hour Episodic Television Series, the Production of Which Commences on or After May 16, 2006".

There is no holiday pay for pilots and 1st season shows. You will receive half of the 4% for season 2. Full holiday pay (4%) is received for 3rd seasons and beyond.

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SAFETY, MEDICAL AND SANITARY CONDITIONS

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All platforms for electrical appliances, lamps, etc., shall be constructed and equipped with the necessary safety devices, guard rails, walking planks, light planks secured and tied to insure the safety of equipment and operation of same. Ladders shall be provided or erected when necessary for access to and from platforms. There shall be **a minimum of one (1) operator for each portable generator**

of over 5,000 watts. More than one (1) electrician is required if a 5 kilowatt light or larger is moved, unless a change in the light and associated equipment substantially reduces present weight.

When, during shooting, a manually counterweighted crane is being used as a moving dolly on which a camera is mounted, **a minimum of three (3) grips shall be required to operate the equipment.**

The employer will observe and obey all safety regulations as required under applicable federal, state and municipal statutes. The employees shall cooperate in observing said safety regulations.

The employer shall, as concerns each location where shooting is to take place, ascertain the locations of the nearest hospital and medical practitioner and advise the shop stewards who represent Local 52 members of same. The employer shall, in case of an accident or need of medical attention, cooperate fully in notifying said hospital or medical practitioner so that immediate assistance and first aid may be given to the injured employee.

The employer shall see that each set or location is supplied with pure drinking water and make available adequate toilet facilities for the employees covered by this Collective Bargaining Agreement.

The employer will endeavor, where practicable, to supply hot water for washing on locations; this provision shall not be subject to grievance and arbitration.

The employer shall ensure, having due regard for safety and fatigue, that an aerial lift operator is given reasonable breaks not less frequently than every four (4) hours.

When the employer engages an environmental consultant to examine a location, the employer will provide, upon the Union's request, a summary report prepared by the environmental consultant showing the location examined, the date, the materials sampled and the results compared to regulatory guidelines.

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REGULAR WORK SCHEDULE

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The standard day's work (inclusive of work on the sixth and seventh days of a workweek and holidays) for all employees working on a daily or weekly basis shall consist of any eight (8) hours.

The regular workweek shall consist of any five (5) consecutive days out of any seven (7) consecutive days, commencing with the first of such five (5) days.

*One time during the production of a motion picture (except in the case of episodic television, the employer may shift the workweek, without incurring added costs, by adding one (1) or two (2) days off consecutive with the sixth and/or seventh days off of the prior workweek and/or by shifting a work week commencing on Tuesday to a workweek commencing on Monday, provided that the intervening

Sunday is a day off. In the case of employees working in episodic television, the employer may exercise the foregoing rights once between hiatus periods (i.e., between the commencement or resumption of production and a cessation of principal photography for the series for at least one week).

If the employer otherwise shifts the workweek such that the new workweek invades the preceding workweek and the employee would receive fewer than two (2) consecutive days off in the workweek as a result of the workweek shift, the employer shall pay the premium for the sixth and/or seventh day worked of the preceding workweek.

Employees shall be advised of any shifts in the workweek prior to the commencement of that workweek. **In no case may employer shift the workweek for the sole purpose of avoiding payment for an unworked holiday.**

The parties clarify that this subparagraph (*) allows a "round trip" shift in the workweek, without the employer incurring any additional costs, provided that the employer returns to a Monday Friday workweek, and, provided further, that in the event the shift back is from a Wednesday through Sunday workweek to a Monday through Friday workweek, the intervening Sunday must be a day off in order for the switch to occur without the payment of a premium.

The parties hereby clarify that the foregoing "workweek" provisions permit the Employer to designate a workweek for any employee which differs from the workweek applicable to the main unit (such as, but not limited to, designating a different workweek for second units, construction and swing gangs).

Notification of Call All members of the crew shall be notified of the time of their next day's call prior to their dismissal on the previous work day. However, the provisions of "Majors Contract, Section 9(a)" (termination of an employee hired at the daily rate) shall remain in full force and effect.

A work day starting on one calendar day and running into the next calendar day shall be credited to the first calendar day, **except that an employee whose work shift overlaps into a holiday or from a holiday into the next day shall be paid double time for those hours worked on the calendar holiday.**

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OVERTIME

2018-2021 Majors Collective Bargaining Agreement Page 36

Theatrical Motion Pictures

Shooting within a Fifty (50) Mile Radius of Columbus Circle

All time worked in excess of eight (8) hours, but less than twelve (12) hours worked, shall be paid at one and one-half times the employee's regular basic hourly rate. All time worked in excess of twelve (12) hours worked, but less than fourteen (14) hours worked, shall be paid at double the employee's

regular basic hourly rate. All time worked in excess of fourteen (14) hours worked shall be paid at two and one-half times the employee's regular hourly rate.

Shooting **outside a Fifty (50) Mile Radius of Columbus Circle, but within New York or New Jersey**

All time worked by employees in excess of eight (8) hours, but less than twelve (12) hours worked, shall be paid at one and one-half times the employee's regular basic hourly rate. All time worked in excess of twelve (12) hours worked shall be paid at double the employee's regular basic hourly rate.

Television Motion Pictures (Episodic)

All time worked in excess of eight (8) hours, but less than twelve (12) hours worked, shall be paid at one and one-half times the employee's regular basic hourly rate. All time worked in excess of twelve (12) hours worked shall be paid at double the employee's regular basic hourly rate.

Sixth and Seventh Day Worked

Time and one-half shall be paid for the employee's sixth day of work within a workweek. Double time shall be paid for the employee's seventh day of work within a workweek.

In the event that any daily employee who is not on a regularly scheduled workweek works six (6) days, starting with the first day worked, within a seven (7) day consecutive period, he shall be paid time and one-half for the sixth day worked.

All work performed on the sixth consecutive workday in excess of twelve (12) hours worked shall be paid at double the employee's regular basic hourly rate. On theatrical motion pictures within fifty (50) miles of Columbus Circle only, all work performed in excess of fourteen (14) hours worked shall be paid at two and one-half times the employee's regular basic hourly rate.

All work performed on the seventh consecutive workday in excess of fourteen (14) hours worked shall be paid at two and one-half times the employee's regular basic hourly rate.

By way of example;

Employee "A" works Monday through Friday, then works Saturday and Sunday. He is paid time and one-half for Saturday and double time for Sunday.

Employee "B" works Monday through Friday, is off Saturday, then works on Sunday. He is paid time and one half for Sunday.

Employee "C" does not work Monday through Friday, even though the rest-of the crew works Monday through Friday. Employee "C" works only Saturday and Sunday. He is paid straight time, because they are his first two days of work.

Overtime shall be payable in one-tenth (1/10) hour units.

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MEAL PERIODS

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Meal periods shall be not less than one-half (½) hour nor more than one (1) hour in length. Not more than one meal period shall be deducted from work time for an employee during the minimum call. A second meal period may be deducted from work time for those employees who work in excess of the minimum call. The minimum guarantee of work time after an evening meal shall be one and one-half (1 ½) hours. This guarantee does not apply when such meal is supplied at the Producer's expense.

The employee's first meal period shall commence within six (6) hours following the time of first call for the day; succeeding meal periods for the same employee shall commence within six (6) hours after the end of the preceding meal period.

A twelve (12) minute grace period may be called for production efficiency prior to imposition of any meal penalty. Such grace period shall not be scheduled nor automatic nor is it intended for everyday use.

The twelve (12) minute grace period may not be utilized when the meal period has been extended as permitted below*. An employee's first meal period shall commence no earlier than two (2) hours after such employee reports for work, except as provided below**.

NOTE - Our interpretation is your back in time would be from catering.

Upon the Local Union filing a claim that a Producer has continuously violated the meal period provisions of the Collective Bargaining Agreement, the Local Union and a representative of the Producer shall meet in an attempt to resolve the matter. In the event that no resolution is reached by the parties, the Local Union, the AMPTP and the Producer shall meet within ten (10) business days after the initial meeting between the Local Union and the Producer to discuss resolving the dispute surrounding the meal periods.

Wrap Extension

*The meal interval may be extended one-half (½) hour without penalty when used for wrapping up (one (1) hour for television) or to complete the camera take(s) in progress, until print quality is achieved. Such extension shall not be scheduled nor automatic.

NDB

**If any member of the company after the commencement of work time is given a reasonable hot breakfast, without deducting the time spent in eating (30 minutes) from work time, then the first meal may be six (6) hours after such breakfast. The parties hereby confirm that the reference to "a reasonable hot breakfast" means a meal appropriate to the time of day.

When an employee is working without direct employer supervision and is given the prerogative to arrange his/her meal periods, the employee shall be charged with the responsibility of taking proper meal period(s).

The meal penalty for delayed meals shall be computed as follows:

On theatrical motion pictures:

First one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$10.00

Second one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$15.00

Third and each succeeding one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
One (1) hour pay at prevailing rate.

On television-motion pictures (other than television motion pictures shooting in a studio):

First one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$6.50

Second one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$7.50

Third one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$17.50

Fourth and each succeeding one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
One (1) hour pay at prevailing rate.

On television-motion pictures shooting in a studio:

First one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$7.50

Second one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$8.50

Third one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
\$18.50

Fourth and each succeeding one-half ($\frac{1}{2}$) hour meal delay or fraction thereof
One (1) hour pay at prevailing rate.

Such allowances shall be in addition to the compensation for work time during the delay and shall not be applied as part of any guarantee.

French Hours

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As an alternative to the foregoing provisions of this Section as they relate to "on production" employees, the employer, at its option, may institute "French Hours" on a daily basis for "on production" employees, with the approval of a majority of the IATSE-represented crew. An employee's consent to the use of a "French Hours" meal system shall not be a condition of employment.

As a Steward, it is important to log all lunch and wrap graces. Taking detailed notes of daily events is a definite way to ensure there is no confusion when reporting these instances back to the hall. Two lunch and two wrap graces are believed to be substantial enough for production. If your production is attempting to call more than the above graces, please make sure the hall is aware.

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FIRST AID EMPLOYEES (MEDICS)

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"With respect to construction, the employer shall make a good faith determination whether first aid employees under this Collective Bargaining Agreement should be assigned. In making that determination, the employer shall consider the following:

The size of the crew

The proximity of emergency medical care

The type of equipment and tools involved in the construction

Whether the construction requires work at elevation."

NOTE - If your production does not have a medic and you believe you are within the parameters stated above, then notify the hall immediately.

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GRIEVANCE PROCEDURE

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All complaints, disputes or questions as to the interpretation, application or performance of this Agreement shall be adjusted initially by direct negotiations between the Union and the employer or their representatives. Should any dispute or difference arise, both parties shall endeavor to settle these in the simplest and most direct manner.

No grievance can be brought after forty-five (45) days from the date of the alleged violation or from the date upon which the Union learns, or should have learned, of the alleged violation, whichever is later.

The procedure shall be as follows (unless step or steps thereof are waived, combined or extended by mutual consent):

*1: The grievance shall be submitted immediately to the aggrieved employee's shop steward and the production manager representing the Employer. If the shop steward and the production manager fail to settle the grievance within the day of the occurrence, it must be submitted to *2.

*2: The grievance shall then be referred to the business manager of the Union or his designated representative and the employer or its authorized representative. If no settlement is reached within ten (10) days, exclusive of Saturday, Sunday or holidays, the grievance must be submitted to arbitration as set forth in *3.

*3: If the dispute or difference is not settled in the second step above, either party may submit the matter to arbitration pursuant to and in accordance with the rules and procedures of the American Arbitration Association ("AAA") within ten (10) days after the reply was given in the second step, provided that in no event will the actual hearing be held prior to the completion of the work done by Local #52 in the feature, segment of television series or other production. However, the Labor Relations representative of the Employer and the Union may agree to hold a hearing prior to that time.

If the parties cannot mutually agree upon an arbitrator, an arbitrator shall be selected pursuant to the rules and procedures of the AAA. The parties shall jointly pay the cost of the arbitrator's services.

The decision of the arbitrator shall be final and binding on the parties.

When and in the event the grievance concerns a payment of wages, the sum in question will be placed in escrow by the Employer in an account in a local bank indicating the Employer and the Union as joint owners of said account, with said escrow to be released to the parties as their interests may appear upon the arbitrator's final determination.

NOTE - It's critical for Stewards and Department Heads to take good notes and records and notify the hall if there are problems.

PART B

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WORKING CONDITIONS FOR CT, DE & PA

OVERTIME AND PREMIUM PAY

For all hours worked in excess of eight (8) hours of work on the first through the fifth work days in a workweek or after forty (40) straight time hours of work in a workweek, and for the first twelve (12) hours worked on a sixth work day in a workweek, an employee shall be paid one and one-half (½) times the employee's regular basic hourly rate.

For all hours worked in excess of twelve (12) hours of work on any work day, an employee shall be paid two (2) times the employee's regular basic hourly rate; however, on television productions, the employee shall be paid two (2) times the employee's regular basic hourly rate for all hours worked after fourteen (14) elapsed hours.

For all hours worked on a seventh workday in the employee's workweek or on a holiday, an employee shall be paid two (2) times the employee's regular basic hourly rate.

Overtime and premium rates will be paid in one-tenth (1/10) hour increments. Overtime and premium rates may not be compounded.

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REST PERIOD

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There shall be a ten (10) hour daily rest period after dismissal, except that the daily rest period shall be nine (9) hours when the employee is required by the employer to remain away from home overnight on distant location (Distant Hire).

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LOCAL, NEARBY AND DISTANT HIRES

A Local Hire, is defined as any employee whose **principal residence is within sixty (60) miles** of the respective production location.

A Nearby Hire is defined as any employee whose **principal residence lies outside sixty (60) miles** of the production location, but **inside the jurisdiction** of this Agreement. Such employees shall be paid a **weekly living allowance of no less than \$315 per week, or \$45 per day prorated.**

A Distant Hire is defined as any employee whose **principal residence is outside the geographical definition of a Nearby Hire** in a given production area, as defined above. **Such employee shall be provided with a reasonable single occupancy hotel accommodations.**

The Employer may request employees to sign a written statement attesting to their principal residency. A false statement of residency will result in immediate discharge.

Per Diem

The Employer shall pay per diem to Distant Hires, as defined in above, at the following rates per day:

Breakfast \$ 8.00, Lunch \$12.00 & Dinner \$25.00

Total Per Diem \$45.00

Any meals provided by the Employer may be deducted from per diem at the above stated rates.

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IDLE PAY

Distant Hires

The Employer shall pay each employee housed on distant location **four (4) hours at the employee's scale hourly rate for each idle sixth or seventh day** in a workweek and shall make a daily benefit plan contribution on behalf of each such employee in the amount specified in this Agreement for each idle sixth or seventh day.

Nearby Hires

For **six (6) day workweeks only, the employer shall contribute the daily benefit plan contribution** on behalf of each such employee in the amount specified in this Agreement for each idle seventh day.

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MEALS

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The meal period provisions set forth in Section 22 shall apply to employees working on productions in Connecticut, Delaware and those portions of Pennsylvania within the geographical jurisdiction of this Agreement. However, the meal penalties for delayed meals for employees employed on **productions other than television motion pictures shooting in a studio** shall be computed as follows:

First one-half (½) hour meal delay or fraction thereof

\$7.50

Second one-half (½) hour meal delay or fraction thereof

\$10.00

Third and each succeeding one-half (½) hour meal delay or fraction thereof
\$12.50 (\$17.50 in Philadelphia)

Fifth and each succeeding one-half (½) hour meal delay or fraction thereof
\$25.00

For any workweek in which an employee is entitled to more than twenty (20) meal period penalties, all subsequent meal period penalties for that employee in that workweek shall be compensated at one (1) hour of pay at the prevailing rate for each one-half (½) hour of meal delay or fraction thereof.

Meal penalties for delayed meals for employees employed on **television-motion pictures shooting in a studio** shall be computed as follows:

First one-half (½) hour meal delay or fraction thereof
\$8.50

Second one-half (½) hour meal delay or fraction thereof
\$11.00

Third and each succeeding one-half (½) hour meal delay or fraction thereof
\$13.50 (\$18.50 in Philadelphia)

Fifth and each succeeding one-half (½) hour meal delay or fraction thereof
\$25.00

For any workweek in which an employee is entitled to more than twenty (20) meal period penalties, all subsequent meal period penalties for that employee in that workweek shall be compensated at one (1) hour of pay at the prevailing rate for each one-half (½) hour of meal delay or fraction thereof.

A meal penalty shall be in addition to the compensation for work time during the delay and shall not be applied as part of any guarantee.

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HOLIDAYS

The following days shall be recognized as holidays for employees employed under the provisions of Part B of this Collective Bargaining Agreement:

New Year's Day
Martin Luther King Jr Day
President's Day
Good Friday
Memorial Day
Fourth of July (Independence Day)

Labor Day
Veteran's Day
Thanksgiving Day and the day after Thanksgiving Day
Christmas Day

If any of the above-named holidays falls on a Sunday, the following Monday shall be considered the holiday and if any of the above-named holidays falls on a Saturday, the preceding Friday shall be considered the holiday, except that during six (6) day workweeks, Saturday holidays will be recognized on Saturday.

Pay for holidays which are not worked shall be calculated on the basis of eight (8) hours (at the employee's regular straight time hourly rate). In order for an employee to be eligible for pay for a holiday which is not worked, an employee must work the scheduled workday before and the scheduled workday after the holiday. (If the next scheduled work day after the holiday follows a hiatus of one (1) week or more, no holiday pay shall be payable). There shall be no pay for any holiday not worked for employees working on long-form television productions, pilots, the first season of any one-hour television series or the first and second seasons of any series produced for basic cable or The CW. During the third season of any series produced for basic cable or The CW, pay for unworked holidays shall be calculated on the basis of four (4) hours (at the employee's regular straight time hourly rate).

Work on any holiday shall be paid at two (2) times the employee's regular basic hourly rate.

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TRAVEL

Production Zone: The "production zone" is defined as the area within a circle which has a radius of thirty (30) miles measured from the Employer's production office.

Nearby Location: Employees requested to report to **any production location outside the "production zone" shall be paid travel time and a mileage allowance** as described herein, **unless the employer provides transportation**. The Employer shall provide transportation to all production locations to all employees who are housed by the employer.

Mileage Allowance: Unless transported by the Employer, employees traveling to any production location outside the "production zone" shall be paid a mileage allowance calculated at thirty cents (30¢) per mile from the edge of the zone to the production location for all such authorized use of the employee's vehicle.

Travel Time: Employees shall be paid at their regular hourly rate for all time traveling to and from any production location outside the "production zone," measured from the edge of the zone to the production location.

Local and Nearby Hires: Local and Nearby Hires shall be paid "set to set." Local Hires shall not be compensated for mileage unless requested to use their vehicle outside of the thirty (30) mile production zone as stated above.

Distant Hires: Distant Hires shall be paid portal-to-portal. In all cases, this shall be based on the time of travel from the housing accommodations provided to the Distant Hires generally and the applicable production location.

"Travel Only" Day: For any day of the week (including holidays) on which an employee travels only, the employee shall receive an allowance of four (4) hours of pay at straight time or pay for time actually traveled, whichever is greater, but in no event more than eight (8) hours of pay at straight time.

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PAYMENT OF WAGES

The regular pay day will be on Thursday (holiday weeks excluded) (Friday on distant location) for all work performed during the previous payroll week. The payroll week shall be from midnight Saturday to midnight Saturday.

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CANCELLATION OF CALLS

In the event of cancellation for previously-called employees, it is understood that if notification is not given by 6:00 p.m. of the previous day's work, then the employee shall be paid an eight (8) hour minimum call.

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NOTES